

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 653

BY RESOURCES AND CONSERVATION COMMITTEE

AN ACT

RELATING TO WILDLIFE; AMENDING SECTION 36-106, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE DIRECTOR OF THE DEPARTMENT OF FISH AND GAME; AMENDING SECTION 36-202, IDAHO CODE, TO DEFINE TERMS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 36-106, Idaho Code, be, and the same is hereby amended to read as follows:

36-106. DIRECTOR OF DEPARTMENT OF FISH AND GAME. (a) Office of Director Created. The commission shall appoint a director of the department of fish and game, hereinafter referred to as the director, who shall be a person with knowledge of, and experience in, the requirements for the protection, conservation, restoration, and management of the wildlife resources of the state. The director shall not hold any other public office, nor any office in any political party organization, and shall devote his entire time to the service of the state in the discharge of his official duties, under the direction of the commission.

(b) Secretary to Commission. The director or his designee shall serve as secretary to the commission.

(c) Compensation and Expenses. The director shall receive such compensation as the commission, with the concurrence and approval of the governor, may determine and shall be reimbursed at the rate provided by law for state employees for all actual and necessary traveling and other expenses incurred by him in the discharge of his official duties.

(d) Oath and Bond. Before entering upon the duties of his office, the director shall take and subscribe to the official oath of office, as provided by section 59-401, Idaho Code, and shall, in addition thereto, swear and affirm that he holds no other public office, nor any position under any political committee or party. Such oath, or affirmation, shall be signed in the office of the secretary of state.

The director shall be bonded to the state of Idaho in the time, form and manner prescribed by chapter 8, title 59, Idaho Code.

(e) Duties and Powers of Director.

1. The director shall have general supervision and control of all activities, functions, and employees of the department of fish and game, under the supervision and direction of the commission, and shall enforce all the provisions of the laws of the state, and rules and proclamations of the commission relating to wild animals, birds, and fish and, further, shall perform all the duties prescribed by section 67-2405, Idaho Code, and other laws of the state not inconsistent with this act, and shall exercise all necessary powers incident thereto not specifically conferred on the commission.

2. The director is hereby authorized to appoint as many classified employees as the commission may deem necessary to perform administrative duties, to enforce the laws and to properly implement management, propagation, and protection programs established for carrying out the purposes of the Idaho fish and game code.

3. The appointment of such employees shall be made by the director in accordance with chapter 53, title 67, Idaho Code, and rules promulgated pursuant thereto, and they shall be compensated as provided therein. Said employees shall be bonded to the state of Idaho in the time, form, and manner prescribed by chapter 8, title 59, Idaho Code.

4. The director is hereby authorized to establish and maintain fish hatcheries for the purpose of hatching, propagating, and distributing all kinds of fish.

5. (A) The director, or any person appointed by him in writing to do so, may take wildlife of any kind, dead or alive, or import the same, subject to such conditions, restrictions and rules as he may provide, for the purpose of inspection, cultivation, propagation, or distribution, or for scientific or other purposes deemed by him to be of interest to the fish and game resources of the state, subject to the provisions of subparagraphs (D) through (F) of this paragraph.

(B) The director shall have supervision over all of the matters pertaining to the inspection, cultivation, propagation and distribution of the wildlife propagated under the provisions of title 36, Idaho Code. He shall also have the power and authority to obtain, by purchase or otherwise, wildlife of any kind or variety which he may deem most suitable for distribution in the state and may have the same properly cared for and distributed throughout the state of Idaho as he may deem necessary, subject to the provisions of subparagraphs (D) through (F) of this paragraph.

(C) The director is hereby authorized to issue a license/tag/permit to a nonresident landowner who resides in a contiguous state for the purpose of taking one (1) animal during an emergency depredation hunt which includes the landowner's Idaho property subject to such conditions, restrictions or rules as the director may provide. The fee for this license/tag/permit shall be equal to the costs of a resident hunting license, a resident tag fee and a resident depredation permit.

(D) (i) ~~Unless relocation is required pursuant to subparagraph (E) herein, notwithstanding the provisions of section 36-408, Idaho Code, to the contrary, the~~ The director shall not expend any funds, ~~or~~ take any action, or authorize any employee or agent of the department, ~~or~~ other person, or agency to take any action, to undertake actual transplants of bighorn sheep into areas they do not now inhabit for the purpose of augmenting existing populations until: planned movement of any wild game, as those terms are defined in section 36-202, Idaho Code, until notice has been given at least thirty (30) days prior to the planned movement. Such notice shall be given to:

~~(i) (1) The boards of county commissioners of the counties in which the release planned movement is proposed to take place have been given reasonable notice of the proposed release.; and~~

~~(ii) (2) The affected federal and state land grazing permittees and owners or leaseholders of private land in or contiguous to the proposed release site have been given reasonable notice of the proposed release within a contiguous five (5) mile radius of the planned movement's proposed release site through mail or phone call or message.~~

~~(iii) The president pro tempore of the senate and the speaker of the house of representatives have received from the director a plan for the forthcoming year that details, to the best of the department's ability, the proposed transplants which shall include the estimated numbers of bighorn sheep to be transplanted and a description of the areas the proposed transplant or transplants are planned for.~~

(ii) Any affected person may, within ten (10) days of such notice, request the board of county commissioners, in writing, for a hearing. Within thirty (30) days of receiving such written request, the board shall conduct one (1) public hearing for each of the proposed actions within the notification. At the public hearing, the board shall accept oral public comment and shall vote to approve or reject the proposed planned movement prior to concluding the hearing. Such vote shall be final and binding on the director.

(E) (i) The director may proceed with responsive movement without prior notification, notwithstanding the provisions of section 36-408, Idaho Code.

(ii) Unless no feasible alternatives exist, responsive movement shall avoid release sites:

(1) Where livestock or production agricultural activity are actively occurring;

(2) That are within one thousand (1,000) feet of critical infrastructure, including but not limited to interstates, grain bins, irrigation systems, and hay storage; or

(3) That are within or near municipalities or designated high-conflict zones.

(iii) Within seventy-two (72) hours of completing a responsive movement, the director shall provide notice, including a brief description of the action taken, the species moved, and location of the release, to:

(1) The board of county commissioners in the release county;

(2) The affected federal and state land grazing permittees and owners or leaseholders of private land within a contiguous five (5) mile radius of the release site; and

(3) The house resources and conservation committee and the senate resources and environment committee for their review during the next legislative session.

(iv) The director shall maintain a publicly accessible report of all responsive movement actions and update it within thirty (30) days of any action. Patterns of repeated responsive movement release in high-conflict, occupied, or agriculturally sensitive areas may be subject to legislative review. The report shall include:

(1) The date and time of the responsive movement;

(2) The species involved;

(3) The reason for the responsive movement classification;

(4) Any human or property interaction or damage; and

(5) The reasoning for selection of the specific release site.

(F) The director shall not authorize, conduct, or otherwise permit the release, planned movement, or responsive movement of any wolf or grizzly bear that has been born or raised in captivity into the wild unless the release is specifically required to avoid listing pursuant to the endangered species act or is to facilitate delisting of the species.

~~Upon request, the department shall grant one (1) hearing per transplant or relocation if any affected individual or entity expresses written concern within ten (10) days of notification regarding any transplants or relocations of bighorn sheep and shall take into consideration these concerns in approving, modifying or canceling any proposed bighorn sheep transplant or relocation. Any such hearing shall be held within thirty (30) days of the request.~~

(G) It is the policy of the state of Idaho that existing sheep or livestock operations in the area of any ~~bighorn sheep~~ wild game transplant or relocation are recognized and that the potential risk, if any, of disease transmission and loss of ~~bighorn sheep~~ wild game when the same invade domestic livestock or sheep operations is accepted. Prior to any transplant or relocation of ~~bighorn sheep~~ wild game into areas they do not now inhabit or a transplant or relocation for the purpose of augmenting existing populations, the department shall provide for any affected federal or state land grazing permittees or owners or leaseholders of private land a written agreement signed by all federal, state and private entities responsible for the transplant or relocation stating that the existing sheep or livestock operations in the area of any such ~~bighorn sheep~~ wild game transplant or relocation are recognized and that the potential risk, if any, of disease transmission and loss of ~~bighorn sheep~~ wild game when the same invade domestic livestock or sheep operations is accepted.

~~(E)~~ (H) The Idaho department of fish and game: (1) shall develop a state management plan to maintain a viable, self-sustaining population of bighorn sheep in Idaho which shall consider as part

1 of the plan the current federal or state domestic sheep grazing
2 allotment(s) that currently have any bighorn sheep upon or in
3 proximity to the allotment(s); (2) within ninety (90) days of the
4 effective date of this act will cooperatively develop best manage-
5 ment practices with the permittee(s) on the allotment(s). Upon
6 commencement of the implementation of best management practices,
7 the director shall certify that the risk of disease transmission,
8 if any, between bighorn and domestic sheep is acceptable for the
9 viability of the bighorn sheep. The director's certification
10 shall continue for as long as the best management practices are
11 implemented. The director may also certify that the risk of dis-
12 ease transmission, if any, between bighorn and domestic sheep
13 is acceptable for the viability of the bighorn sheep based upon
14 a finding that other factors exist, including but not limited
15 to previous exposure to pathogens that make separation between
16 bighorn and domestic sheep unnecessary.

17 6. (A) The director shall have the power, at any time when it is
18 desired to introduce any new species, or if at any time any species
19 of wildlife of the state of Idaho shall be threatened with exces-
20 sive shooting, trapping, or angling or otherwise, to close any
21 open season or to reduce the bag limit or possession limit for such
22 species for such time as he may designate; in the event an emer-
23 gency is declared to exist, such closure shall become effective
24 forthwith upon written order of the director; in all other cases,
25 upon publication and posting as provided in section 36-105, Idaho
26 Code.

27 (B) (i) In order to protect property from damage by wildlife,
28 including bear and turkey, the fish and game commission
29 may delegate to the director or his designee the authority
30 to declare an open season upon that particular species of
31 wildlife to reduce its population. The director or his de-
32 signee shall make an order embodying his findings in respect
33 to when, under what circumstances, in which localities, by
34 what means, and in what amounts, numbers and sex the wildlife
35 subject to the hunt may be taken. In the event an emergency
36 is declared to exist, such open season shall become effec-
37 tive forthwith upon written order of the director or his
38 designee; in all other cases, upon publication and posting
39 as provided in section 36-105, Idaho Code.

40 (ii) In the event a kill permit is issued by the director
41 or his designee, the individual or landowner with the kill
42 permit, in conjunction with their responsibility for field
43 dressing the animals taken, may keep one (1) animal for their
44 personal use. In the event the director or his designee
45 issues a subsequent kill permit for the same individual or
46 landowner due to continued depredation, the director or his
47 designee may authorize the individual or landowner to keep a
48 second subsequently taken animal for their personal use.

49 (C) Any season closure order issued under authority hereof shall
50 be published in at least one (1) newspaper of general circulation

1 in the area affected by the order for at least once a week for two
 2 (2) consecutive weeks, and such order shall be posted in public
 3 places in each county as the director may direct.

4 (D) During the closure of any open season or the opening of any
 5 special depredation season by the director, all provisions of laws
 6 relating to the closed season or the special depredation season
 7 on such wildlife shall be in force and whoever violates any of the
 8 provisions shall be subject to the penalties prescribed therefor.

9 (E) Prior to the opening of any special depredation hunt, the di-
 10 rector or his designee shall be authorized to provide up to a max-
 11 imum of fifty percent (50%) of the available permits for such big
 12 game to the landholder(s) of privately owned land within the hunt
 13 area or his designees. If the landholder(s) chooses to designate
 14 hunters, he must provide a written list of the names of designated
 15 individuals to the department. If the landholder(s) fails to des-
 16 ignate licensed hunters, then the department will issue the total
 17 available permits in the manner set by rule. All hunters must have
 18 a current hunting license and shall have equal access to both pub-
 19 lic and private lands within the hunt boundaries. It shall be un-
 20 lawful for any landholder(s) to receive any form of compensation
 21 from a person who obtains or uses a depredation controlled hunt
 22 permit.

23 7. The director shall make an annual report to the governor, the legis-
 24 lature, and the secretary of state of the doings and conditions of his
 25 office.

26 8. The director may sell or cause to be sold publications and materials
 27 in accordance with section 59-1012, Idaho Code.

28 9. (A) ~~Any deer, elk, antelope, moose, bighorn sheep or bison im-~~
 29 ~~ported or transported~~ To the extent practicable, any classified
 30 big game imported, transported, required for sampling by the de-
 31 partment, or utilized for tracking by the department of fish and
 32 game shall be tested for the presence of certain communicable dis-
 33 eases and strains that can be transmitted to domestic livestock.
 34 Those communicable diseases to be tested for shall be arrived at
 35 by mutual agreement between the department of fish and game and the
 36 department of agriculture. Any moneys expended by the department
 37 of fish and game on wildlife disease research shall be mutually
 38 agreed upon by the department of fish and game and the department
 39 of agriculture.

40 (B) ~~In addition, a~~ A comprehensive animal health program for all
 41 ~~deer, elk, antelope, moose, bighorn sheep, or bison big game im-~~
 42 ~~ported into, transported, used for tracking,~~ or resident within
 43 the state of Idaho shall be implemented after said program is mutu-
 44 ally agreed upon by the department of fish and game and the depart-
 45 ment of agriculture.

46 10. In order to monitor and evaluate the disease and strain status of
 47 wildlife and to protect Idaho's livestock resources, any suspicion by
 48 fish and game personnel of a potential communicable disease process in
 49 wildlife shall be reported within twenty-four (24) hours to the depart-
 50 ment of agriculture. All samples collected for disease monitoring or

disease evaluation of wildlife shall be submitted to the division of animal industries, department of agriculture.

11. (A) The director is authorized to enter into an agreement with an independent contractor for the purpose of providing a telephone order and credit card payment service for controlled hunt permits, licenses, tags, and permits.

(B) The contractor may collect a fee for its service in an amount to be set by contract.

(C) All moneys collected for the telephone orders of such licenses, tags, and permits shall be and remain the property of the state, and such moneys shall be directly deposited by the contractor into the state treasurer's account in accordance with the provisions of section 59-1014, Idaho Code. The contractor shall furnish a good and sufficient surety bond to the state of Idaho in an amount sufficient to cover the amount of the telephone orders and potential refunds.

(D) The refund of moneys for unsuccessful controlled hunt permit applications and licenses, tags, and permits approved by the department may be made by the contractor crediting the applicant's or licensee's credit card account.

12. The director may define activities or facilities that primarily provide a benefit: to the department; to a person; for personal use; to a commercial enterprise; or for a commercial purpose.

13. The director shall consult with other agencies to identify eligible land suitable for the location or relocation of shooting ranges.

SECTION 2. That Section 36-202, Idaho Code, be, and the same is hereby amended to read as follows:

36-202. DEFINITIONS. Whenever the following words appear in title 36, Idaho Code, and orders and rules promulgated by the Idaho fish and game commission or the director of the Idaho department of fish and game, they shall be deemed to have the same meaning and terms of reference as hereinafter set forth. The present tense includes the past and future tenses, and the future, the present.

(a) "Title" means all of the fish and game laws and rules promulgated pursuant thereto.

(b) "Commission" means the Idaho fish and game commission. "Commissioner" means a member of the Idaho fish and game commission.

(c) "Department" means the Idaho department of fish and game.

(d) "Director" means the director of the Idaho department of fish and game or any person authorized to act in his name.

(e) "Employee" means any employee of the Idaho department of fish and game whose salary is paid entirely or in part by funds administered by the Idaho fish and game commission and whose appointment is made in accordance with chapter 53, title 67, Idaho Code, and related rules.

(f) "Person" means an individual, partnership, corporation, company, or any other type of association, and any agent or officer of any partnership, corporation, company, or other type of association. The masculine gender includes the feminine and the neuter. The singular, the plural, and the plural, the singular.

(g) "Wildlife" means any form of animal life, native or exotic, generally living in a state of nature provided that domestic cervidae as defined in section 25-3701, Idaho Code, shall not be classified as wildlife.

(h) "Trophy big game animal" means any big game animal deemed a trophy as defined in this subsection. For the purpose of this section, a score shall be determined from the antlers of the mule deer, white-tailed deer or elk as measured by the copyrighted Boone and Crockett scoring system. The highest of the typical or nontypical scores shall be used for determining the total score.

1. Mule deer: any buck scoring over one hundred fifty (150) points;

2. White-tailed deer: any buck scoring over one hundred thirty (130) points;

3. Elk: any bull scoring over three hundred (300) points;

4. Bighorn sheep: any ram;

5. Moose: any bull;

6. Mountain goat: any male or female;

7. Pronghorn antelope: any buck with at least one (1) horn exceeding fourteen (14) inches;

8. Caribou: any male or female;

9. Grizzly bear: any male or female.

(i) "Take" means hunt, pursue, catch, capture, shoot, fish, seine, trap, kill, or possess or any attempt to so do.

(j) "Hunting" means chasing, driving, flushing, attracting, pursuing, worrying, following after or on the trail of, shooting at, stalking, or lying in wait for, any wildlife whether or not such wildlife is then or subsequently captured, killed, taken, or wounded. Such term does not include stalking, attracting, searching for, or lying in wait for, any wildlife by an unarmed person solely for the purpose of watching wildlife or taking pictures thereof.

(k) "Fishing" means any effort made to take, kill, injure, capture, or catch any fish or bullfrog.

(l) "Trapping" means taking, killing, and capturing wildlife by the use of any trap, snare, deadfall, or other device commonly used to capture wildlife, and the shooting or killing of wildlife lawfully trapped, and includes all lesser acts such as placing, setting or staking such traps, snares, deadfalls, and other devices, whether or not such acts result in the taking of wildlife, and every attempt to take and every act of assistance to any other person in taking or attempting to take wildlife with traps, snares, deadfalls, or other devices.

(m) "Possession" means both actual and constructive possession, and any control of the object or objects referred to; provided that wildlife taken accidentally and in a manner not contrary to the provisions of this title shall not be deemed to be in possession while being immediately released live back to the wild.

(n) "Possession limit" means the maximum limit in number or amount of wildlife which may be lawfully in the possession of any person. "Possession limit" shall apply to wildlife being in possession while in the field or being transported to final place of consumption or storage.

(o) "Bag limit" means the maximum number of wildlife which may be legally taken, caught, or killed by any one (1) person for any particular

1 period of time, as provided by order of the commission. The term "bag limit"
 2 shall be construed to mean an individual, independent effort and shall not be
 3 interpreted in any manner as to allow one (1) individual to take more than his
 4 "bag limit" toward filling the "bag limit" of another.

5 (p) "Buy" means to purchase, barter, exchange, or trade and includes
 6 any offer or attempt to purchase, barter, exchange, or trade.

7 (q) "Sell" means to offer or possess for sale, barter, exchange, or
 8 trade, or the act of selling, bartering, exchanging or trading.

9 (r) "Transport" means to carry or convey or cause to be carried or con-
 10 veyed from one (1) place to another and includes an offer to transport, or re-
 11 ceipt or possession for transportation.

12 (s) "Resident" means any person who has been domiciled in this state,
 13 with a bona fide intent to make this his place of permanent abode, for a pe-
 14 riod of not less than six (6) months immediately preceding the date of ap-
 15 plication for any license, tag, or permit required under the provisions of
 16 this title or orders of the commission and who, when temporarily absent from
 17 this state, continues residency with intent to return, and who does not claim
 18 any resident privileges in any other state or country for any purpose. Such
 19 privileges include, but are not limited to: state where valid driver's li-
 20 cense is issued; state of voter registration; state where resident state in-
 21 come taxes are filed; state where homeowner's tax exemption is granted. Pro-
 22 vided that, until any such person has been continuously domiciled outside
 23 the state of Idaho for a sufficient period of time to qualify for resident
 24 hunting and fishing privileges in his new state of residence, said person
 25 shall be deemed not to have lost his residency in Idaho for the purposes of
 26 this title. However, mere ownership of real property or payment of property
 27 taxes in Idaho does not establish residency. Provided further that:

28 1. Idaho residents shall not lose their residency in Idaho if they
 29 are absent from the state for religious (not to exceed two (2) years)
 30 or full-time educational (not to exceed five (5) years) purposes,
 31 full-time to be defined by the educational institution attended, and
 32 do not claim residency or use resident privileges in any other state or
 33 country for any purpose.

34 2. Idaho residents who are in the military service of the United States
 35 and maintain Idaho as their official state of residence as shown on
 36 their current leave and earnings statement, together with their spouse
 37 and children under eighteen (18) years of age living in the household,
 38 shall be eligible for the purchase of resident licenses.

39 3. A member of the military service of the United States or of a for-
 40 eign country, together with his spouse and children under eighteen (18)
 41 years of age residing in his household, who have been officially trans-
 42 ferred, stationed, domiciled and on active duty in this state for a pe-
 43 riod of thirty (30) days last preceding application shall be eligible,
 44 as long as such assignment continues, to purchase a resident license. A
 45 member of the state national guard or air national guard, domiciled in
 46 this state for a period of thirty (30) days last preceding application
 47 shall be eligible, as long as such residency continues, to purchase a
 48 resident license.

4. Any person enrolled as a corpsman at a job corps center in Idaho shall be eligible, as long as he is so enrolled, to obtain a resident fishing license irrespective of his length of residence in this state.

5. Any foreign exchange student enrolled in an Idaho high school shall be eligible, as long as he is so enrolled, to obtain a resident fishing license irrespective of his length of residence in this state.

(t) "Senior resident" means any person who is over sixty-five (65) years of age who meets the definition of a "resident" pursuant to the provisions of this section.

(u) "Nonresident" means any person who does not qualify as a resident.

(v) "Order, rule, regulation and proclamation" are all used interchangeably and each includes the others.

(w) "Blindness" means sight that does not exceed 20/200 as provided by the administrative guidelines of section 56-213, Idaho Code.

(x) "Public highway" means the traveled portion of, and the shoulders on each side of, any road maintained by any governmental entity for public travel, and includes all bridges, culverts, overpasses, fills, and other structures within the limits of the right-of-way of any such road.

(y) "Motorized vehicle" means any water, land or air vehicle propelled by means of steam, petroleum products, electricity, or any other mechanical power.

(z) "Commercial fish hatchery" means any hatchery, pond, lake or stream or any other waters where fish are held, raised, or produced for sale but shall not include facilities used for the propagation of fish commonly considered as ornamental or aquarium varieties.

(aa) "License" means any license, tag, permit or stamp.

(bb) "License vendor" means any person authorized to issue or sell licenses.

(cc) "Proclamation" means the action by the commission and publication of the pertinent information as it relates to the seasons and limits for taking wildlife.

(dd) "Commercial wildlife tannery" means any person or entity whose primary business is the actual tanning of wildlife skins/hides, processes in excess of ten thousand (10,000) wildlife skins/hides per year, and receives more than seventy-five percent (75%) of its business via common carrier in interstate commerce.

(ee) "Planned movement" means the department's scheduled or otherwise discretionary capture, relocation, or transplantation of an animal that does not pose an imminent threat to public safety or a direct danger to human life or property. Planned movement may include but is not limited to:

1. Actions taken for habitat modification or restoration;

2. Population management or augmentation;

3. Genetic diversity efforts;

4. Research or tracking purposes;

5. Mitigation of human-wildlife conflicts that do not require responsive movement; and

6. Reintroductions into areas where objectives are not being met.

(ff) "Responsive movement" means the department's immediate capture, relocation, or transplantation of an animal because it is necessary to pro-

1 tect public safety due to an imminent threat. Such threats may include but
2 are not limited to situations in which an animal:

3 1. Enters a developed or populated area;

4 2. Becomes trapped or injured; or

5 3. Otherwise poses a direct and immediate danger to human life, public
6 infrastructure, or private property.

7 (gg) "Wild game" means all wildlife, excluding game fish and classified
8 predatory wildlife, as that term is defined in section 36-201, Idaho Code,
9 including such raised in captivity.

10 SECTION 3. An emergency existing therefor, which emergency is hereby
11 declared to exist, this act shall be in full force and effect on and after
12 July 1, 2026.